

25STCV27302 25STCV27302

County: los-angeles  
Division: Civil Law and Motion  
Department: 506  
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Case Number: 25STCV27302 Hearing Date: August 4, 2026 Dept: 506

SUPERIOR  
COURT OF THE STATE OF CALIFORNIA  
  
FOR THE  
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RESTLESS NITES, LLC,  
  
Plaintiff,

vs.

RED SIGNATURE SOLUTIONS, LLC,  
  
Defendant.

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CASE NO.: 25STCV27302

[TENTATIVE] ORDER GRANTING MOTION TO SET  
ASIDE/VACATE DEFAULT JUDGMENT

Dept. 506

8:30 a.m.

August 4, 2026

On September 17, 2025, Plaintiff Restless Nites, LLC filed  
this action against Defendant Red Signature Solutions, LLC.

On December 22, 2025, the Court entered  
default against Defendant, and on June 4, 2026, the Court entered a default judgment.

On June 22, 2206, Defendant filed a motion  
to set aside/vacate the entry of default and the default judgment. Defendant seeks relief under Code of Civil Procedure  
section 473, among other grounds.

A

court may relieve a party or counsel from a judgment resulting from mistake, inadvertence,  
surprise, or excusable neglect. (Code Civ.  
Proc., § 473, subd. (b).) The application  
for relief must be made within a reasonable time, not to exceed six months, after  
the judgment. (Ibid.) When the default was caused by counsel's mistake,  
inadvertence, surprise, or neglect, the Court must grant relief. (Ibid.) "[T]he purpose of the mandatory relief provision  
under section 473, subdivision (b) is achieved by focusing on who is to blame,  
not why. Indeed, in many cases, the

reasons for the attorney's mistake, inadvertence, surprise, or neglect will be irrelevant; that is because . . . the mandatory relief provision entitles a party to relief even when his or her attorney's error is inexcusable." (Martin Potts & Associates, Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 439.)

This

motion was timely filed six months after entry of default. Eduardo Martinez, Defendant's Managing Member and Agent for Service of Process, did not receive any legal documents of mail before November 12, 2025. (Martinez Decl. ¶¶ 8, 10.) Mr. Martinez then received a Request for Entry of Default dated November 7, 2025, and he forwarded it to his attorney. (Martinez Decl. ¶ 9; see Holt Decl. ¶ 3.) Defendant's attorney called Plaintiff's attorney to discuss the case and his belief that service of process was improper. (Holt Decl. ¶ 6.) Plaintiff's counsel "requested that [Defendant's counsel] 'hold off' filing the motion to set aside the 11/7 Default until we attempted to settle the matter." (Holt Decl. ¶ 7.) Defendant's counsel was unaware that the November 7 Request for Entry of Default was rejected by the Court. (Holt Decl. ¶ 7.) Had he known, he would have filed an answer to the Complaint. (Holt Decl. ¶ 7.) Plaintiff's counsel did not contact Defendant's counsel again before March 2026. (See Holt Decl. ¶¶ 8-12.) Defendant's counsel realized that the November 7 Request for Entry of Default was not entered, but default was entered on December 22, 2025—"less than three (3) weeks after [Plaintiff's counsel] had assured [Defendant's counsel] he would not move forward with the 11/7 Default until we exhausted settlement negotiations." (Holt Decl. ¶ 10.)

Plaintiff's counsel had an ethical obligation to warn Defendant's counsel that he was about to seek default. (See *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135 (Lasalle).) Plaintiff has not shown any prejudice if the default is set aside, "given the relatively short time between [Plaintiff] seeking the default and [Moving Defendants] asking to be relieved from it." (Id. at pp. 138-139.) "When evaluating a motion to set aside a default judgment on equitable grounds, the "court must weigh the reasonableness of the conduct of the moving party in light of the extent of the prejudice to the responding party." [Citation.]" (Id. at p. 139.) As in *Lasalle*, setting aside this default involves little wasted time.

Based

on these facts, the Court finds that the default is the result of counsel's mistake, inadvertence, or neglect, and Defendant is entitled to relief under Code of Civil Procedure section 473.

The

motion is GRANTED. The default judgment entered on June 4, 2026 is VACATED. The default entered on December 22, 2025 is VACATED.

Defendant

is ordered to file its responsive pleading within 10 days.

A

Case Management Conference is scheduled for \_\_\_\_\_.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 4th day of August 2026

Hon. Thomas D. Long

Judge of the Superior  
Court